



File No.: EXP202311522

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On June 23, 2023, a complaint was filed with the Spanish Agency for Data Protection against SYNERGYM HOLDING, S.L., with NIF B93293579 (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant states that they are receiving commercial communications despite having opposed the receipt of such emails.

They provide the following commercial communications received and their responses, opposing the receipt of more communications of this type:

- July 13, 2020: Limited promotion 48 hours (email sent by the complained party).
- July 14, 2020: The complainant indicates, in a response email, that they have not given consent for the sending of commercial communications, warning that they will report them to the Spanish Agency for Data Protection.
- August 27, 2020: Say goodbye to summer excesses (email sent by the complained party).
- August 28, 2020: The complainant indicates, in a response email, that they have not given unequivocal consent for the sending of commercial communications, warning again that they will report them to the Spanish Agency for Data Protection.
- August 31, 2020: Email sent by the complained party: "We have proceeded to unsubscribe you from all commercial communications. We apologize for the inconvenience. If you receive any type of communication, please contact me again."
- June 15, 2023: Email sent by the complained party: Download our app. The email explains that through the app, users can enjoy 500 training videos; self-weighting; training plans and routines; booking of directed classes; and unique and fun challenges.

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- June 15, 2023: Response from the complainant insisting that they do not have consent for the sending of advertising and insisting that if they receive another email, they will report it to the AEPD.
- June 15, 2023: Email sent by the complained party: "We apologize for your discomfort; first of all, we want to inform you that the email you show us in the thread is for you to register in the new app and be able to book classes, see routines, and much more, so it is not commercial."
- June 22, 2023: Email sent by the complained party: Download our app, identical email to that of June 15.
- June 22, 2023: Email sent by the complainant to the complained party stating: Let's see what the AEPD thinks when I have asked on two occasions not to send me more emails and you continue...
- June 22, 2023: Email sent by the complained party: "We apologize for the inconvenience, but at no time have you requested through this email to unsubscribe from commercial communications; we are unaware if you have done so in person, despite the fact that it must be done via the email infolopd@synergym.es. And as we have mentioned in the previous email and other emails, you have not accepted the sending of commercial emails."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of

October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on August 31, 2023, as stated in the certificate in the file.

On September 25, 2023, a response was received in this Agency indicating the following:

That regarding the emails dated June 15, 2023, and June 22, 2023, which the complainant received and claims are commercial, they are merely informative emails, sent only to Active Members, that is, to customers, and that affect solely and exclusively the club's service regarding them, informing that in order to continue using the club's services as

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Active member who is, a user must be created in the new app to be able to book classes, view routines, and much more.

If the member did not download the app, they would not be able to use the services of the club, which they had subscribed to as an active member.

SYNERGYM HOLDING S.L. rigorously complies at all times with the technical and organizational measures required under the General Data Protection Regulation 2016/679 and the Organic Law 3/2018, on Personal Data Protection and the guarantee of digital rights, which are carried out in the most effective manner possible, also requiring any user of the company to observe these instructions. Additionally, we have contracted a specialized company in data protection, which advises us on all matters related to the regulations, and we have appointed a Data Protection Officer. To date, we have not received any type of complaint or sanction regarding data protection.

Attached is the registration form of the complainant, which includes their personal data, registration date: June 16, 2017, and cancellation date: June 30, 2023.

THIRD: On September 23, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

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II

Prohibition of commercial communications made via email or equivalent electronic means

The sending of commercial communications by electronic means is regulated in Article 21 of the LSSI, which states:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous paragraph shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of their own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

III

Rights of the recipients of the services

Article 22.1 of the LSSI establishes the following:

1. The recipient may revoke at any time the consent given to receive commercial communications by simply notifying their will to the sender.

To this end, service providers must enable simple and free procedures for service recipients to revoke the consent they have given. When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.

They must also provide accessible information by electronic means about these procedures.

IV

Conclusion

The complainant's data was lawfully obtained by the respondent.

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The emails referred to regarding the download of the app are not commercial emails but rather informational, indicating that in order to continue using the club's services as an active member, a user account needed to be created in the new app to reserve classes, view routines, and much more. If the member did not download the app, they would not be able to use the club's services, which they had subscribed to as an active member.

The sending of commercial emails by the responding entity ceased upon the claimant's opposition to their receipt.

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the provisions indicated, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to SYNERGYM HOLDING, S.L., and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this

resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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